

		The Court finds an agreement to arbitrate exists. <u>Whether the Agreement covers Plaintiffs' claims</u> The Agreement provides it applies to “[a]ny dispute, claim or controversy arising out of or relating to this Lease.” (Tehranian Decl., Ex. 1 at § 1.) The party opposing arbitration “bears the burden to show the arbitration provision cannot be interpreted to cover the claims in the complaint.” (<i>Howard v. Goldbloom</i> (2018) 30 Cal.App.5th 659, 663.) Plaintiffs do not dispute the Agreement covers their claims which relate to alleged habitability issues of the leased property. The Court finds the Agreement covers Plaintiffs' claims. <u>Enforceability of the Agreement</u> Once the court determines whether an agreement exists, it must then determine whether it is enforceable if any defense to its enforcement is raised. (<i>Rosenthal v. Great Western Fin. Securities Corp.</i> (1996) 14 Cal.4th 394, 413.) Plaintiffs have not raised any defenses as to enforceability of the Agreement. Accordingly, the Court GRANTS Defendant The Irvine Company LLC's motion to compel arbitration. This action is stayed pending the outcome of arbitration.
5	23-01365328 <i>Almaraz-Ramirez vs. Walmart Inc.</i>	1) Motion for Protective Order 2) Motion to Compel Deposition (Oral or Written) 3) Motion to Compel Further Responses to Special Interrogatories <u>Motion for Protective Order</u> Defendant Walmart, Inc.'s Motion for Protective Order is GRANTED in part and DENIED in part. Defendant is ORDERED to produce Grisel “Grey” Granados for a remote deposition which shall be limited to 1.5 hours. The deposition shall take place within 60 days of this order. The parties are ORDERED to meet and confer within 10 days of this order to select a date for the deposition. Code of Civil Procedure section 1987.1 provides, in part: “[T]he court, upon motion reasonably made by [a party, witness, consumer, or employee] . . . may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or

conditions as the court shall declare, including protective orders. In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person.” (Code Civ. Proc., § 1987.1, subds. (a)-(b).)

“The court, for good cause shown, may make any order that justice requires to protect any party, deponent, or other natural person or organization from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense.” (Code Civ. Proc., § 2025.420(b).)

“If the motion for a protective order is denied in whole or in part, the court may order that the deponent provide or permit the discovery against which protection was sought on those terms and conditions that are just.” (Code Civ. Proc., § 2025.420(g).)

The Court finds good cause to limit Plaintiff’s deposition of Granados to no more than 1.5 hours and to be conducted by remote means. After review of the doctor’s note submitted in support of the Motion, it is not apparent Granados’s medical condition would prohibit her from any participation in discovery. Accordingly, the Court finds the limitations above sufficient to protect Granados.

Motion to Compel Deposition

Plaintiff Alicia Almaraz-Ramirez’s Motion to Compel Grey Granados’s Attendance at Deposition is GRANTED with the restrictions ordered above.

The Court finds Defendant acted with substantial justification in opposing the Motion, thus, sanctions are DENIED.

Motion to Compel Further Responses

Plaintiff Alicia Almaraz-Ramirez’s Motion to Compel Further Responses to Special Interrogatories, set four, is CONTINUED to [REDACTED].

The Court finds the parties’ meet and confer efforts to be insufficient. “A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion.” (Code Civ. Proc., § 20216.040(a).) A letter is not an approved meet and confer method.

The parties are ORDERED to meet and confer in good faith in an attempt to resolve the outstanding discovery issues **in person, by telephone, or by videoconference** within 15 days of this order. If Defendant agrees to serve supplemental responses, Defendant shall serve supplemental verified responses and produce additional documents no later than 20 court days prior to the continued hearing date. The parties must file a joint statement not to exceed 5 pages addressing the parties’ meet and confer efforts no later than 15 court days before the hearing. Plaintiff may file

		and serve a supplemental memorandum of remaining issues, no later than 9 court days before the continued hearing date and not to exceed ten pages, including: (1) attaching a copy of Defendant's supplemental responses, if any; and (2) a concise description of any remaining dispute including identification of the specific interrogatories which remain in dispute. Defendant may file a responsive supplemental memorandum, not to exceed ten pages, addressing the disputed issues, no later than 5 court days before the continued hearing date.
7	25-01527585 Champion Tobacco Corporation vs. JTL Lux LLC	Motion to Quash Service of Summons Defendants' Motion to Quash Service of Summons and Complaint is GRANTED. Defendants JTL Lux, LLC; David Hsu; and Tina Lim specially appear and move under Code Civil Procedure section 418.10 for an order quashing service of summons and complaint for lack of personal jurisdiction. Section 418.10, subdivision (a)(1) provides that a defendant may serve and file a notice of motion "[t]o quash service of summons on the ground of lack of jurisdiction of the court over him or her." Once a defendant files a motion to quash challenging jurisdiction, the burden is on the plaintiff to demonstrate by a preponderance of the evidence sufficient minimum contacts exist between the defendant and the forum state to justify imposition of personal jurisdiction. (<i>Mihlon v. Superior Court</i> (1985) 169 Cal.App.3d 703, 710; <i>Ziller Electronics Lab GmbH v. Superior Court</i> (1988) 206 Cal.App.3d 1222, 1232.) The evidence must be competent; unverified pleadings are insufficient (<i>Mihlon v. Superior Court, supra</i> at p. 710), as are hearsay declarations (<i>Floveyor Int'l, Ltd. v. Superior Court</i> (1997) 59 Cal.App.4th 789, 796). California has the broadest kind of "long arm" statute, allowing California courts to "exercise jurisdiction on any basis not inconsistent with the Constitution of this state or of the United States." (Code Civ. Proc., § 410.10.) Due process allows a state court to exercise personal jurisdiction over a nonresident defendant who has "minimum contacts" with the forum state: a relationship between the nonresident and the forum state which is such that the exercise of jurisdiction does not offend "traditional notions of fair play and substantial justice." (<i>International Shoe Co. v. Washington</i> (1945) 326 U.S. 310, 316.) Such personal jurisdiction may be general or specific. General jurisdiction arises when a defendant maintains "continuous and systematic" contacts with the forum state even when the cause of action has no relation to those contacts. (<i>Helicopteros Nacionales de Colombia, S.A. v. Hall</i> (1984) 466 U.S. 408, 415.) Even where general jurisdiction does not exist, a nonresident defendant may still be subject to specific jurisdiction if the controversy is related to or arises out of the defendant's contacts with the forum state. (<i>Ibid.</i>) Courts use a 3-part test to determine whether specific jurisdiction exists: (1) "defendant has purposefully availed himself or herself of forum benefits;" (2) "the controversy is related to or 'arises out of' a defendant's contacts with the